

7	Harpel vs. New Orange Hills, Inc. 30-2025-01499188	<u>Motion to Compel Arbitration and Joinder</u> The court has no written tentative ruling at this time and will hear from the parties or their counsel. The court has heard and carefully considered all the arguments made with respect to the motion to compel arbitration brought in <i>Verrigni v. New Orange Hills, Inc.</i> , Case Number 2025-01486638, and will issue a ruling shortly. The parties and counsel need not repeat in detail all the arguments made in that case. However, they should focus on the ways in which the evidence and arguments in this case are the same or different than in <i>Verrigni v. New Orange Hills, Inc.</i> They also should clarify any ambiguities in the arguments in that case or this case.
8	Var vs. New Orange Hills, Inc. 30-2025-01486640	<u>Motion to Compel Arbitration and Joinder</u> The court has no written tentative ruling at this time and will hear from the parties or their counsel. The court has heard and carefully considered all the arguments made with respect to the motion to compel arbitration brought in <i>Verrigni v. New Orange Hills, Inc.</i> , Case Number 2025-01486638, and will issue a ruling shortly. The parties and counsel need not repeat in detail all the arguments made in that case. However, they should focus on the ways in which the evidence and arguments in this case are the same or different than in <i>Verrigni v. New Orange Hills, Inc.</i> They also should clarify any ambiguities in the arguments in that case or this case.
9	Clasby vs. City of Seal Beach 30-2025-01516539	<u>Demurrer</u> Defendant City of Seal Beach's Demurrer to the Third through Sixth Causes of Action in Plaintiff's Complaint is OVERRULED as to the 3rd, 4th, and 5th Causes of Action,

		and SUSTAINED with 15 days leave to amend as to the 6th Cause of Action. If Plaintiff Julia Clasby does not amend the Complaint within the period of time stated above, Defendant City of Seal Beach shall file an answer or other pleading in response to the remaining causes of action of the Complaint within 10 days of the expiration of the period of time to amend. (See Cal. Rules of Court, rule 3.1320(j).) Defendant City of Seal Beach's Request for Judicial Notice in Support of Demurrer to the Third through Sixth Causes of Action in Plaintiff's Complaint is GRANTED as to Exhibits A and B. (See Evid. Code, § 452, subd.s (c), (d), (h).) <u>Pending Motion</u> Defendant City of Seal Beach demurs to the 3rd through 6th Causes of Action of the Complaint filed by Plaintiff Julia Clasby. <u>Standard on Demurrer</u> A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) For this reason, the court will not decide questions of fact on demurrer. (See <i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) Instead, the court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (<i>Serrano v. Priest</i> (1971) 5 Cal.3d 584, 591, citation omitted; see <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318). Therefore, the court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (<i>Hall v. Great W. Bank</i> (1991) 231 Cal.App.3d 713, 718 fn.7.) However, "where facts appearing in attached exhibits or judicially noticed documents contradict, or are inconsistent with, the complaint's allegations, we must rely on the facts in the exhibits and judicially noticed documents." (<i>Jimenez vs. Mrs. Gooch's Natural Foods Markets, Inc.</i> (2023) 95 Cal.App.5th 645, 653.)
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		Therefore, the court will overrule the demurrer on this basis. <u>3rd Cause of Action [Unlawful Harassment Because of Sex / Gender (Cal. Gov. Code §§ 12923, 12940(a) and (j))]</u> As the Supreme Court has explained: With certain exceptions not implicated here, the FEHA makes it an unlawful employment practice for an employer, "because of the . . . sex . . . of any person, . . . to discriminate against the person in compensation or in terms, conditions, or privileges of employment." (§ 12940, subd. (a).) Likewise, it is an unlawful employment practice for an employer, "because of . . . sex, . . . to harass an employee." (§ 12940, subd. (j)(1).) Under the statutory scheme, "'harassment' because of sex" includes sexual harassment and gender harassment. (§ 12940, subd. (j)(4)(C).) (<i>Lyle v. Warner Brothers Television Productions</i> (2006) 38 Cal.4th 264, 277.) "[T]he prohibition against sexual harassment includes protection from a broad range of conduct, ranging from expressly or impliedly conditioning employment benefits on submission to or tolerance of unwelcome sexual advances, to the creation of a work environment that is hostile or abusive on the basis of sex." (<i>Miller v. Department of Corrections</i> (2005) 36 Cal.4th 446, 461.) "To establish a prima facie case of a hostile work environment, [a plaintiff] must show that (1) she is a member of a protected class; (2) she was subjected to unwelcome harassment; (3) the harassment was based on her protected status; (4) the harassment unreasonably interfered with her work performance by creating an intimidating, hostile, or offensive work environment; and (5) defendants are liable for the harassment." (<i>Ortiz v. Dameron Hospital Assn.</i> (2019) 37 Cal.App.5th 568, 581.) "[T]he harassment complained of must be 'sufficiently pervasive so as to alter the conditions of employment and create an abusive working environment' 'The plaintiff must prove that the defendant's conduct would have interfered with a reasonable employee's work performance and would have seriously affected the psychological well-being of a reasonable employee and that she was actually offended.' '[H]arassment cannot be occasional, isolated, sporadic, or trivial[;] rather the plaintiff must show a concerted pattern of harassment of a repeated, routine or a
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		generalized nature.” (<i>Aguilar v. Avis Rent A Car System, Inc.</i> (1999) 21 Cal.4th 121, 130-131, disapproved on other grounds, <i>Bailey v. San Francisco District Attorney’s Office</i> (2024) 16 Cal.5th 611, 631, fn.6, quoting <i>Fisher v. San Pedro Peninsula Hospital</i> (1989) 214 Cal.App.3d 590, 608-610.) However, a single incident can constitute actionable harassment if it is sufficiently severe. (<i>Etter v. Veriflo Corp.</i> (1998) 67 Cal.App.4th 457, 467; see also <i>Bailey v. San Francisco District Attorney’s Office, supra</i>, 16 Cal.5th at p. 631, fn.6 [“The isolated use of an unambiguous racial epithet may be sufficiently severe to create a hostile work environment based on the totality of the circumstances surrounding its use. In other words, it does not require something more; rather, it requires full consideration of the use of the epithet itself, including but not limited to the specific word or words used, the speaker, whether it was directed at the plaintiff, and the larger social context of the workplace.”].) An entity defendant is liable “if the entity, or its agents or supervisors, knows or should have known of this conduct and fails to take immediate and appropriate corrective action.” (<i>Martin v. Board of Trustees of California State University</i> (2023) 97 Cal.App.5th 149, 170, quoting Gov. Code, § 12940, subd. (j)(1).) In this case, the Complaint generally alleges Police Chief Michael Henderson sabotaged Plaintiff’s career advancement opportunities. (Compl., ¶ 106.) For example, the Complaint pleads that Henderson directed Plaintiff to prepare a list of her weaknesses to include in Plaintiff’s performance review, while a male counterpart did not have to make a list of deficiencies. (See <i>ibid.</i>) The Complaint also asserts that, despite Plaintiff testing significantly better, Henderson chose a less-qualified for Captain in Fall 2022, and that when Henderson announced that Plaintiff’s male peer had been chosen to be a Captain, Henderson warned Plaintiff that she would be competing with a newly-promoted, less-qualified male Lieutenant the next time she applied for a Captain position. (See <i>id.</i>, ¶¶ 107-108.) The Complaint further alleges that Henderson insinuated that it would be bad optics to send Plaintiff and a male subordinate to attend an out-of-state training conference and instead, sent two men to conference. (See <i>id.</i>, ¶ 109.) The Complaint goes on to plead that Henderson twice instructed Plaintiff to make travel arrangements for the
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		attendees instead of asking support staff to arrange the travel. (See <i>id.</i>, ¶¶ 123-124.) The Complaint asserts that, when Plaintiff requested authorization to attend the Crime Prevention Through Environmental Design (CPTED) training, Henderson denied the request and suggested a course targeted to lower-level personnel. (See <i>id.</i>, ¶¶ 126-127.) Similarly, it is alleged that Henderson denied Plaintiff's request to attend the USC Public Safety Leadership Program, claiming that he did not like the "optics" of Plaintiff attending the program, even though men in the Command Staff had been approved to attend a similar program for which the Seal Beach Police Department had paid and allowed them to attend as compensated time. (See <i>id.</i>, ¶¶ 127-129.) Additionally, the male Marine Safety/Lifeguard Chief attended the same USC program, paid for by Defendant on city time. (See <i>id.</i>, ¶ 129.) Furthermore, the Complaint asserts that a male Sergeant compared Plaintiff's professional attire to that of a male Lieutenant who is usually out of uniform and "is seen as more 'relatable and casual.'" (<i>Id.</i>, ¶ 113.) At the same time, Henderson is alleged to have disparagingly noted Plaintiff's attire when she was wearing sweatpants. (See <i>id.</i>, ¶ 115.) The Complaint also pleads that another male Sergeant said to Plaintiff, "You're a female who promoted quickly and everyone is either jealous or threatened." (<i>Id.</i>, ¶ 117.) The Complaint then asserts that after a meeting with male Sergeants, a male supervisory employee stated to Plaintiff, "Let's just address the elephant in the room – you are a woman who will have to work twice as hard for half the respect and people are threatened by your success because they think you promoted too quickly." (<i>Id.</i>, ¶ 118.) The Complaint alleges that Henderson also routinely, unexpectedly entered Plaintiff's office, using a master key if needed, but did not engage in similar conduct with male members of the Command Staff. (See <i>id.</i>, ¶ 144.) These allegations are sufficient to make out that Plaintiff was a member of a protected class who was subjected to unwelcome harassment on the basis of her membership in the protected class. The Complaint also pleads that the harassing conduct is severe and pervasive, and creates a hostile, intimidating, offensive, oppressive, and abusive work environment that has caused Plaintiff harm, and that Defendant is
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		responsible for such harassing conduct. (See <i>id.</i>, ¶¶ 195-197.) These allegations are sufficient to make out a cause of action for harassment based on sex or gender under FEHA. Defendant contends that the Complaint does not identify which specific allegations Plaintiff relies upon to support her claim of sex or gender harassment. However, Defendant points to no authority for the proposition that Plaintiff is required to do so. Defendant can obtain such information through discovery. Defendant also argues that the Complaint alleges isolated incidents by different individuals that are not all directed at Plaintiff. However, whether unlawful conduct was directed at Plaintiff cannot be determined at this stage. Instead, the court is required to assume the truth of all allegations that have been properly pleaded. As noted above, these allegations are sufficient to support a cause of action for sex or gender harassment. Therefore, the court will overrule the demurrer to the 3rd Cause of Action. <u>4th Cause of Action [Unlawful Failure to Take All Reasonable Steps Necessary to Prevent Harassment Because of Sex / Gender (Cal. Gov. Code §§ 12923, 12940(a), (j)(1) and (k))]</u> The Fair Employment and House Act (FEHA) provides that it is an unlawful employment practice: "(k) For an employer, labor organization, employment agency, apprenticeship training program, or any training program leading to employment, to fail to take all reasonable steps necessary to prevent discrimination and harassment from occurring." (Gov. Code, § 12940, subd. (k).) Section 12940(k) "creates a separate actionable tort enforceable upon the establishment of the usual tort elements of duty of care, breach of duty (a negligent act or omission), causation, and damages." (<i>Dickson v. Burke Williams, Inc.</i> (2015) 234 Cal.App.4th 1307, 1313.) Such a claim requires a plaintiff to prove: (1) he or she was an employee; (2) subject to harassment/discrimination/retaliation in the course of employment; (3) the employer failed to take all reasonable steps to prevent the harassment/discrimination/retaliation;
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		(4) the plaintiff was harmed; and (5) the employer's failure to take all reasonable steps to prevent harassment/discrimination/retaliation was a substantial factor in causing the plaintiff's harm. (See CACI 2527.) Defendant points to the fact that a cause of action for failure to prevent discrimination or harassment is contingent upon a viable claim of discrimination or harassment. (See <i>Dickson v. Burke Williams, Inc.</i>, <i>supra</i>, 234 Cal.App.4th at p. 1314.) Defendant contends that since the harassment claim fails, the failure to prevent harassment claim must also fail. However, for the reasons explained above, the Complaint sufficiently alleges a cause of action for sexual harassment. Thus, the derivative failure to prevent sexual harassment claim survives Defendant's demurrer. The court will overrule the demurrer to the 4th Cause of Action. <u>5th Cause of Action [Unlawful Employment Discrimination Because of Pregnancy and Childbirth (Cal. Gov. Code §§ 12940(a), 12926(r))]</u> FEHA prohibits an employer from discriminating against any person in terms, conditions, or privileges of employment because of the person's sex, which includes pregnancy or medical conditions related to pregnancy. (Gov't Code, §§ 12926, subd. (r)(1), 12940, subd. (a).) A plaintiff may show discrimination based on one of two theories: "Disparate treatment" is intentional discrimination against one or more persons on prohibited grounds. Prohibited discrimination may also be found on a theory of "disparate impact," i.e., that regardless of motive, a facially neutral employer practice or policy, bearing no manifest relationship to job requirements, in fact had a disproportionate adverse effect on members of the protected class. (<i>Guz v. Bechtel National, Inc.</i> (2000) 24 Cal.4th 317, 354, fn.20, citations omitted.) In order to establish a prima facie case of disparate treatment discrimination under FEHA, the plaintiff must show "that (1) he was a member of a protected class, (2) he was qualified for the position he sought or was performing competently in the position he held, (3) he suffered an adverse employment action, such as
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		termination, demotion, or denial of an available job, and (4) some other circumstance suggests discriminatory motive.” (<i>Id.</i> at p. 355.) A plaintiff must demonstrate that her protected characteristic, such as pregnancy or childbirth, was a substantial motivating factor in the challenged employment decision. (<i>Harris v. City of Santa Monica</i> (2013) 56 Cal.4th 203, 231-32.) Here, the Complaint alleges that in 2015, when Plaintiff was pregnant with her first child, several male Sergeants discussed her pregnancy during a monthly management meeting and, in derogatory terms, stated words to the effect of “typical female, just got here, immediately pregnant, going on light duty.” (Compl., ¶ 59.) The Complaint also pleads that, in February 2020, Plaintiff went into then-Commander Henderson’s office and advised him that she was pregnant and that Henderson then responded, “Nooooooooo.” (See <i>id.</i>, ¶ 77.) The Complaint goes on to assert that in August 2022, Plaintiff learned that prior to her being promoted to Lieutenant, during the selection process, then-Captain Henderson contacted the then-City Human Resources Director and inquired if Henderson was allowed to ask Plaintiff if she planned on having any more children. (See <i>id.</i>, ¶ 103.) The Complaint further asserts that in the Fall of 2022, Henderson promoted Plaintiff’s male, unmarried, and childless counterpart to Captain even though Plaintiff was “the significantly more qualified candidate in numerous respects.” (<i>Id.</i>, ¶¶ 105, 107.) A plaintiff may support allegations of discriminatory motive on the basis of age by making out that she or he were replaced by a significantly younger person. (<i>Hoglund v. Sierra Nevada Memorial-Miners Hospital</i> (2024) 102 Cal.App.5th 56, 74.) Similarly, Plaintiff can make out a claim of discrimination by alleging that she is a woman who had been pregnant, that she was qualified to become Captain, that she was not promoted to Captain, and that a person who had never been and could not become pregnant in the future received the promotion instead of her, suggesting a discriminatory motive. Defendant argues that the Complaint fails to plead that any adverse employment action was taken against Plaintiff due to her pregnancies. However, the Complaint alleges that
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		she was not promoted and that a person who had never been and could not become pregnant was promoted even though he was less qualified. Defendant also claims that there were no allegations of discrimination due to pregnancy that are alleged to have occurred within the statutory limitations period. Here, the Complaint only alleges that the promotion process to become Captain occurred “[i]n the Fall of 2022.” (Compl., ¶ 105.) It does not state when the male candidate was chose to become Captain. (See <i>id.</i>, ¶ 107.) From the face of the Complaint, it cannot be said that the discriminatory actions occurred prior to October 2, 2022. (fn.1) (fn.1) Defendant may determine the exact dates that the allegedly discriminatory conduct occurred and may seek to challenge this cause of action if it can show that the selection of the male candidate occurred prior to October 2, 2022. In the alternative, the fact that Plaintiff was qualified to become Captain but was not promoted and a male candidate was selected instead creates a presumption of discrimination, but that presumption is rebuttable. (See <i>Guz v. Bechtel National, Inc.</i>, <i>supra</i>, 24 Cal.4th at p. 354-355.) Defendant may “rebut the presumption by producing admissible evidence, sufficient to ‘raise[] a genuine issue of fact’ and to ‘justify a judgment for the [employer],’ that its action was taken for a legitimate, nondiscriminatory reason.” (<i>Id.</i> at pp. 355-356.) Accordingly, the court will overrule the demurrer to the 5th Cause of Action. <u>6th Cause of Action [Unlawful Retaliation (Cal. Gov. Code § 12940(h))]</u> “To establish a prima facie case of retaliation, ‘a plaintiff must show (1) he or she engaged in a “protected activity,” (2) the employer subjected the employee to an adverse employment action, and (3) a causal link existed between the protected activity and the employer’s action.’” (<i>Zamora v. Security Industry Specialists, Inc.</i> (2021) 71 Cal.App.5th 1, 63, citing <i>Yanowitz v. L'Oreal USA, Inc.</i> (2005) 36 Cal.4th 1028, 1042.) In the Complaint, Plaintiff alleges that sometime in or after 2020, Plaintiff made a verbal and written complaint against a Sergeant alleging that he had made improper comments related to her gender and pregnancy, which eventually lead to the Sergeant’s demotion and retirement. (See Compl., ¶¶ 79-99.)
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		The Complaint also pleads that, on March 13, 2025, Plaintiff submitted a formal complaint to the Seal Beach City Manager. (See Compl., ¶ 132.) In the 2025 formal complaint, Plaintiff asserted that “Henderson had engaged in ‘unequal and discriminatory treatment’ toward [Plaintiff], that Henderson ‘refuses to provide her similar training and opportunities as her male counterparts simply based on her gender.’” (<i>Ibid.</i>) The Complaint pleads that, in the Spring of 2025, an Internal Affairs proceeding was opened to investigate claims that Plaintiff had made disparaging comments about Henderson and that Henderson had authorized the investigation without consulting his Captains, which is outside the normal Internal Affairs protocol. (See <i>id.</i>, ¶ 141.) The Complaint alleges that Henderson also mulled over and threatened numerous other investigations and alleged policy violations against Plaintiff. (See <i>id.</i>, ¶ 143.) Defendant contends that the Complaint fails to allege that any adverse employment action was taken as a result of Plaintiff’s protected activity. Defendant points to <i>St. Myers v. Dignity Health</i> (2019) 44 Cal.App.5th 301, in which the Court of Appeal ruled that the plaintiff had failed to show that an adverse employment action was taken against her even though she pointed to “the manipulation of her schedule, the false allegations against her and resulting investigations, the spreading of rumors based on these false allegations, and the requirements that she practice below the standard of care.” (<i>Id.</i> at p. 318.) Here, Plaintiff has similarly failed to allege that any adverse employment action was taken against her as a result the complaints she made. The fact that an Internal Affairs investigation was opened, without more, is insufficient under <i>St. Myers v. Dignity Health</i>. Therefore, the court will sustain the demurrer to the 6th Cause of Action. <u>Leave to Amend</u> “It is an abuse of the trial court’s discretion to sustain a demurrer without leave to amend if there is a reasonable possibility the plaintiff can amend the complaint to allege any cause of action.” (<i>Smith v. State Farm Mutual Automobile Ins. Co.</i> (2001) 93 Cal.App.4th 700, 711.)
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		However, it is the plaintiff's "burden to establish how the complaint can be amended to state a valid cause of action." (<i>Sanowicz v. Bacal</i> (2015) 234 Cal.App.4th 1027, 1044.) In order to meet this burden, a plaintiff may submit a proposed amended complaint or enumerate facts and demonstrate how those facts establish a cause of action. (<i>See Cantu v. Resolution Trust Corp.</i> (1992) 4 Cal.App.4th 857, 890.) At the same time, "for an original complaint, regardless whether the plaintiff has requested leave to amend, it has long been the rule that a trial court's denial of leave to amend constitutes an abuse of discretion unless the complaint 'shows on its face that it is incapable of amendment.'" (<i>Eghtesad v. State Farm General Insurance Co.</i> (2020) 51 Cal.App.5th 406, 411, quoting <i>King v. Mortimer</i> (1948) 83 Cal.App.2d 153, 158; see <i>Cabral v. Soares</i> (2007) 157 Cal.App.4th 1234, 1240 ["Only rarely should a demurrer to an initial complaint be sustained without leave to amend."].) In this case, Plaintiff seeks leave to amend and the demurrer is asserted against the original Complaint, so that Plaintiff has not had a prior opportunity to amend in response to a challenge by the Defendant. Thus, the court will exercise its discretion and grant leave to amend. The parties are reminded that, when leave to amend is granted upon the sustaining of a demurrer, amendments are limited to the issues addressed in the court's ruling and generally may not include amendments to causes of action not addressed in the ruling or the addition of new causes of action. (<i>See Community Water Coalition v. Santa Cruz County Local Agency Formation Com.</i> (2011) 200 Cal.App.4th 1317, 1329 ["It is the rule that when a trial court sustains a demurrer with leave to amend, the scope of the grant of leave is ordinarily a limited one. It gives the pleader an opportunity to cure the defects in the particular causes of action to which the demurrer was sustained, but that is all."].) <u>Motion to Strike</u> Defendant City of Seal Beach's Motion to Strike Portions of Plaintiff's Complaint is DENIED. <u>Pending Motion</u> Defendant City of Seal Beach moves to strike Paragraphs 25-34 and 48-58 of the Complaint filed by Plaintiff Julia Clasby.
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		<u>Standard for Motion to Strike</u> A party may move to strike out any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436.) “Irrelevant” matters include: allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim, or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subd. (b).) A party may also request to strike legal conclusions. (Weil & Brown, Cal. Prac. Guide, Civil Proc. before Trial, ¶ 7:179 (2010).) Specifically, conclusory allegations that are not supported by factual allegations in the complaint may be stricken. (<i>Perkins v. Superior Court</i> (1981) 117 Cal.App.3d 1, 6.) For example, prayers for relief that lack factual foundation may be stricken from a complaint. (See <i>Turman v. Turning Point of Central Calif., Inc.</i> (2010) 191 Cal.App.4th 53, 63 [trial court properly struck prayer for punitive damages where complaint failed to allege sufficient facts to show that defendant acted with malice, oppression, or fraud].) The grounds for a motion to strike must appear on the face of the pleading or from matters which the court may judicially notice. (See Code Civ. Proc., § 437.) However, pleadings are to be construed liberally with a view to substantial justice. (Code Civ. Proc., § 452; Weil & Brown, Cal. Prac. Guide, Civil Proc. before Trial, ¶ 7:197 (2010).) “In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth. In ruling on a motion to strike, courts do not read allegations in isolation.” (<i>Clauson v. Superior Court</i> (1998) 67 Cal.App.4th 1253, 1255, citations omitted.) <u>Paragraphs 25-34 and 48-58</u> Defendant contends that Paragraphs 25-34 and 48-58 of the Complaint should be stricken because they are irrelevant allegations about 1) the history of the Seal Beach Police Department from the 1970s, 2) general statistics about the representation of women in law enforcement,
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	and 3) Plaintiff's experiences at other law enforcement agencies before she joined the City of Seal Beach. Specifically, Paragraphs 25-34 of the Complaint contain information about the history of the Seal Beach Police Department's treatment of its female employees, including a focus on gender discrimination. Paragraphs 48-51 cite to statistics and quote a study discussing the benefits of women working in law enforcement. Finally, Paragraphs 52-53 allege facts about Plaintiff's experiences in law enforcement prior to working for the Seal Beach Police Department while paragraphs 54-58 contain allegations concerning the culture at the Seal Beach Police Department in general. As noted above, courts must construe pleadings liberally with a view to substantial justice, and must read the allegations of the complaint as a whole and in context. The challenged allegations provide historical or background context and contribute to a full understanding of Plaintiff's Complaint as a whole. The challenged allegations are not so irrelevant, false, or improper as to warrant striking them from the pleading. Further, the Defendant has not pointed to any undue prejudice that arises from these allegations. Defendant argues that the allegations are prejudicial in that they introduce unnecessary issues and impose a burden by requiring additional discovery and research work. However, if Defendant has determined that an allegation is irrelevant, then it can take appropriate action and reduce the resources to be expended on that allegation. In any case, it is inherent in all civil litigation that the parties must decide which issues they will choose to spend their limited resources. The fact that the court has chosen not to strike the challenged allegations at this early stage in the litigation does not mean that the court will allow evidence regarding these allegations at trial. Any prejudice may be avoided by excluding some or all such evidence at trial. Therefore, the court will deny the motion to strike. Defendant shall give notice of these rulings.
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10	Hughes vs. Orange County 30-2023-01313697	<u>Demurrer</u> Defendants Orange County's, Orange County Sheriff's Department's, and Jessica Capitulo's Demurrer to Plaintiff's Fourth Amended Complaint is SUSTAINED without leave to amend as to the 1st, 2nd, 4th, and 5th Causes of Action, and SUSTAINED with 15 days leave to amend as to the 3rd and 6th Causes of Action. For clarity, the 6th Cause of Action stands against Defendants Orange County and Orange County Sheriff's Department, and the 1st through 6th Causes of Action stand against Defendant Tiffany Williams. If Plaintiff Albert Hughes III does not amend the 4th Amended Complaint within the period of time stated above, Defendants Orange County and Orange County Sheriff's Department shall file an answer or other pleading in response to the remaining cause of action of the 4th Amended Complaint within 10 days of the expiration of the period of time to amend. (See Cal. Rules of Court rule 3.1320(j).) <u>Pending Motion</u> Defendant Orange County (Defendant OC), Defendant Orange County Sheriff's Department (Defendant OCSD), and Defendant Jessica Capitulo (Defendant Capitulo) demurs to the entirety of the Fourth Amended Complaint for Damages (4AC) filed by Plaintiff Albert Hughes III, as well as the 1st through 6th Causes of Action of the 4AC. <u>Timeliness of Reply</u> As an initial matter, Plaintiff objects that Defendants' reply was filed late. (See ROA #590.) However, Defendants' reply papers were filed and served on May 22, 2026, which is 5 court days before the hearing and therefore timely. (See ROA #588; Code Civ. Proc., s 1005, subd. (b) ["All papers opposing a motion so noticed shall be filed with the court and a copy served on each party at least nine court days, and all reply papers at least five court days before the hearing.].) Further, Plaintiff does not point to any prejudice that he suffered.